

D. White

Date: 11/20/2013

**Risk Review Community Based Family Support and Preservation Contract between
Wyoming Department of Family Services, Social Services Division and
City of Cheyenne, Office of Youth Alternatives**

By: BT
Date: 11-19-13

1. **Parties.** The parties to this Contract are the Wyoming Department of Family Services, Social Services Division (DFS), whose address is 2300 Capitol Avenue, Hathaway Building, Third Floor, WY 82002-0490, and City of Cheyenne, Office of Youth Alternatives (Contractor), whose address is 1328 Talbot Court, Cheyenne, WY 82001.

2. **Purpose of Contract.** The purpose of this Contract is for Contractor to provide services under the Funding Area for Family Preservation Services. The program will provide in-home support and mentoring services to under-served families and strengthen the ability of parents to provide supportive care for their children in Laramie County. Office of Youth Alternatives will work closely with the local DFS, Laramie County School Districts, and other community members. The program will serve families in the City of Cheyenne and other surrounding areas of Laramie County.

3. **Term of Contract and Required Approvals.** This Contract is effective when all parties have executed it and all required approvals have been granted (Effective Date). The term of the Contract is from Effective Date through September 30, 2014. All services shall be completed during this term. This Contract may be renewed once by agreement of both parties in writing and subject to the required approvals. There is no right or expectation of extension and any extension will be determined at the discretion of DFS.

By law, contracts for professional or other services must be approved as to form by the Attorney General and approved by the Procurement Services Division of the Department of Administration and Information, Wyo. Stat. § 9-1-403(b)(v), and all contracts for services costing over One Thousand Five Hundred Dollars (\$1,500.00) must be approved by the Governor or his designee as well, Wyo. Stat. § 9-2-1016(b)(iv).

4. **Payment.** DFS agrees to pay the Contractor for the services described herein. Following execution of this contract, the total payment under this Contract shall not exceed Thirty-Six Thousand One Hundred Two Dollars (\$36,102.00) for the period October 1, 2013 through September 30, 2014. Payment shall be made as monthly reimbursements, based upon receipt of a signed contract and an approvable invoice explaining costs incurred and a program effectiveness report. No payment shall be made for work performed prior to the date upon which the last required signature is affixed to this Contract.

The federal source of funding for this Contract is Child Welfare Services IV-B, Part II, Family Preservation, CFDA #93.556. This grant requires a thirty percent (30%) match (in-kind, cash, or other as negotiated by the Contractor); match amount is Fifteen Thousand Four Hundred Seventy-Two Dollars (\$15,472.00). The administrative costs are ten percent (10%) of the grant amount which is Three Thousand Six Hundred Ten Dollars (\$3,610.00). The match and administrative costs must be reported each month and are described in the Contractor's budget which is attached hereto as Attachment B and incorporated herein by reference.

If the Contractor's yearly total of contracted dollars exceeds Five Hundred Thousand Dollars (\$500,000.00) of federal funds, regardless of the source, the Contractor is required to have a single or program-specific audit conducted in accordance with the Office of Management and Budget (OMB) Circular A-133. The Contractor shall furnish DFS a copy of the final audit, along with the Contractor's responses to the audit.

5. **Responsibilities of Contractor.** The Contractor shall:

A. Perform the services described in Attachment A:

(i) Provide In-Home Parent Support & Mentoring program for families and children in the City of Cheyenne and the surrounding areas of Laramie County;

B. Provide all the required reports/records as set out below:

(i) A detailed quarterly report within 15 working days of the end of each quarter. The report must include families served in the City of Cheyenne and surrounding areas in Laramie County and collaboration with community partners to include the local DFS office, Laramie County School Districts and other community members;

(ii) Financial reports must be submitted each month. This report must list expenditures to date by line item, match requirements, administrative costs and reflect current balances;

(iii) Accompanying legible receipts and verifications regarding finances;

(iv) Progress report(s), program evaluation report(s), and Year-end Budget Analysis report(s);

(v) Any product, materials, and/or media developed (if applicable); and

(vi) Any other reports as requested by DFS.

C. Administer background checks on employees who will be working with children, youth and families; and

D. Not make equipment purchases with Contract funds.

6. **Responsibilities of DFS.** DFS shall:

A. Provide technical assistance, consultation, and coordination as needed and requested by the Contractor;

B. Evaluate the performance of the Contractor; and

C. Approve or disapprove the invoice submitted by the Contractor for payment.

7. **Special Provisions**

A. **Administration of Federal Funds.** Contractor agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of OMB Circulars A-102 and/or 2 C.F.R. Part 215; the cost principles set forth in OMB Circulars A-21, A-87 or A-122 and 48 C.F.R. Part 31; the audit requirements of OMB Circular A-133; and all applicable regulations published in the Code of Federal Regulations or other program guidance as provided to it by DFS.

B. **Copyright License and Patent Rights.** Contractor acknowledges that Administration for Children and Families, the State of Wyoming, and DFS reserve a royalty-free, non-exclusive, unlimited and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under this Contract; and (2) any rights of copyright to which Contractor purchases ownership using funds awarded under this Contract. Contractor must consult with DFS regarding any patent rights that arise from, or are purchased with, funds awarded under this Contract.

C. **Environmental Policy Acts.** Contractor agrees all activities under this Contract will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

D. **Federal Audit Requirements.** Contractor agrees that if it expends an aggregate amount of Five Hundred Thousand Dollars (\$500,000.00) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Contractor agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and OMB Circular A-133, Audits of States, Local Governments, and Non-Profit Organizations. If findings are made which cover any part of this Grant, Contractor shall provide one (1) copy of the audit report to DFS and require release of the audit report by its auditor be held until adjusting entries are disclosed and made to DFS's records.

E. **Human Trafficking.** As required by 22 U.S.C. 7104(g) and 2 C.F.R. Part 175, this agreement may be terminated without penalty if a private entity that receives funds under this agreement:

(i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;

(ii) Procures a commercial sex act during the period of time that the award is in effect; or

(iii) Uses forced labor in the performance of the award or subawards under the award.

F. **Limitations on Lobbying Activities.** In accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by the Contractor or its subcontractors

in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan. The Contractor and its subcontractors shall submit a certification statement and disclosure form acceptable to DFS before commencement of the work.

G. **Limitations of Payment.** DFS's obligation to pay the Contractor for services rendered pursuant to this Contract is conditioned upon the availability of state or federal government funds which are allocated to pay the Contractor. If funds are not allocated and available for DFS to pay the Contractor for these services, DFS may terminate this Contract at the end of the period for which the funds are available.

DFS shall notify the Contractor at the earliest possible time if this Contract will or may be affected by a shortage of funds. No liability shall accrue to DFS in the event this provision is exercised, and DFS shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed so as to permit DFS to terminate this Contract to acquire similar services from another party.

H. **Monitor Activities.** DFS shall have the right to monitor all Contract related activities of the Contractor and all subcontractors. This shall include, but not limited to, the right to make site inspections at any time, to bring experts and consultants on site to examine or evaluate completed work or work in progress, and to observe all Contractor personnel in every phase of performance of Contract related work.

I. **No Finder's Fee.** No finder's fee, employment DFS fee, or other such fee related to the procurement of this Contract shall be paid by either party.

J. **Non-Supplanting Certification.** Contractor hereby affirms that federal grant funds will be used to supplement existing funds, and will not replace (supplant) funds that have been appropriated for the same purpose. Contractor should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Contract.

K. **Program Income.** Contractor shall not deposit grant funds in an interest bearing account without prior approval of DFS. Any income attributable to the grant funds distributed under this Contract must be used to increase the scope of the program or returned to DFS.

L. **Publicity.** Any publicity given to the program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for Contractor and related to the services and work to be performed under this Contract, shall identify Department of Family Services as the sponsoring agency and shall not be released without prior written approval of DFS.

M. **Suspension and Debarment.** By signing this Contract, Contractor certifies that it is not suspended, debarred, or voluntarily excluded from federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Contract suspended, debarred, or voluntarily excluded. Further, Contractor agrees to notify DFS by

certified mail should Contractor or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Contract.

8. **General Provisions**

A. **Amendments.** Any changes, modifications, revisions or amendments to this Contract which are mutually agreed upon by the parties to this Contract shall be incorporated by written instrument, executed and signed by all parties to this Contract.

B. **Americans with Disabilities Act.** The Contractor shall not discriminate against a qualified individual with a disability and shall comply with the Americans with Disabilities Act, P.L. 101-336, 42 U.S.C. 12101, *et seq.*, and/or any properly promulgated rules and regulations related thereto.

C. **Applicable Law/Venue.** The construction, interpretation and enforcement of this Contract shall be governed by the laws of the State of Wyoming. The Courts of the State of Wyoming shall have jurisdiction over this Contract and the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming. The parties intend and agree that the State of Wyoming and DFS do not waive sovereign immunity by entering into this Contract, and specifically retain immunity and all defenses available to them as sovereigns pursuant to Wyo. Stat. §1-39-104(a) and all other state law.

D. **Assignment/Contract Not Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set forth in this Contract without the prior written consent of the other party. The Contractor shall not use this Contract or any portion thereof, for collateral for any financial obligation, without the prior written permission of DFS.

E. **Assumption of Risk.** The Contractor shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to Contractor's failure to comply with state or federal requirements. DFS shall notify the Contractor of any state or federal determination of noncompliance.

F. **Audit/Access to Records.** DFS and any of its representatives shall have access to any books, documents, papers, and records of the Contractor which are pertinent to this Contract.

G. **Availability of Funds.** Each payment obligation of DFS is conditioned upon the availability of government funds, which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the Contractor, the Contract may be terminated by DFS at the end of the period for which the funds are available. DFS shall notify the Contractor at the earliest possible time of the services, which will or may be affected by a shortage of funds. No penalty shall accrue to DFS in the event this provision is exercised, and DFS shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit DFS to terminate this Contract in order to acquire similar services from another party.

H. **Award of Related Contracts.** DFS may undertake or award supplemental or successor contracts for work related to this Contract. The Contractor shall cooperate fully with other contractors and DFS in all such cases.

I. **Certificate of Good Standing.** Contractor shall provide Certificate of Good Standing verifying compliance with the unemployment insurance and workers' compensation programs prior to performing work under this Contract.

J. **Compliance with Laws.** The Contractor shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Contract.

K. **Confidentiality of Information.** All documents, data compilations, reports, computer programs, photographs, and any other work provided to or produced by the Contractor in the performance of this Contract shall be kept confidential by the Contractor unless written permission is granted by DFS for its release.

L. **Conflicts of Interest.** Contractor shall not engage in providing consultation or representation of clients, agencies or firms which may constitute a conflict of interest which results in a disadvantage to DFS or a disclosure which would adversely affect the interests of DFS. Contractor shall notify DFS of any potential or actual conflicts of interest arising during the course of the Contractor's performance under this Contract. This Contract may be terminated in the event a conflict of interest arises. Termination of the Contract will be subject to a mutual settlement of accounts. In the event the Contract is terminated under this provision, the Contractor shall take steps to insure that the file, evidence, evaluation and data are provided to DFS or its designee. This does not prohibit or affect the Contractor's ability to engage in consultations, evaluations or representation under agreement with other agencies, firms, facilities, or attorneys so long as no conflict exists.

A conflict of interest warranting termination of the Contract includes, but is not necessarily limited to, representing a client in an adversarial proceeding against the State of Wyoming, its agencies, boards, commissions or the University of Wyoming or initiating suits in equity including injunctions, declaratory judgments, writs of prohibition or quo warranto.

M. **Entirety of Contract.** This Contract, consisting of ten (10) pages; Attachment A, consisting of seven (7) pages; and Attachment B, consisting of one (1) page, represents the entire and integrated Contract between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

N. **Ethics.** Contractor shall keep informed of and comply with, if applicable, the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*), and any and all ethical standards governing Contractor's profession.

O. **Extensions.** Nothing in this Contract shall be interpreted or deemed to create an expectation that this Contract will be extended beyond the term described herein. Any extension of this Contract shall be initiated by DFS, and shall be effective only after it is reduced to writing and executed by all parties to the Contract. Any agreement to extend this Contract shall include, but not necessarily be limited to: an unambiguous identification of the Contract being extended; the term of the extension; the amount of any payment to be made during the extension, or

a statement that no payment will be made during the extension; a statement that all terms and conditions of the Original Contract shall, unless explicitly delineated in the exception, remain as they were in the Original Contract; and, if the duties of either party will be different during the extension than they were under the Original Contract, a detailed description of those duties shall be submitted.

P. **Force Majeure.** Neither party shall be liable for failure to perform under this Contract if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays. This provision shall not be effective unless the failure to perform is beyond the control and without the fault or negligence of the nonperforming party.

Q. **Indemnification.** Each party to this Contract shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the other.

R. **Independent Contractor.** The Contractor shall be free from direction over details of performance of services under this Contract, function as an independent contractor for the purposes of this Contract, and shall not be considered an employee of the State of Wyoming for any purpose. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this Contract, and shall be solely responsible for the payment of all federal, state and local taxes which may accrue because of this Contract. Nothing in this Contract shall be interpreted as authorizing the Contractor or its agents and/or employees to act as an agent or representative for or on behalf of the State of Wyoming or DFS, or to incur any obligation of any kind on the behalf of the State of Wyoming or DFS. The Contractor agrees that no health/hospitalization benefits, workers' compensation, unemployment insurance and/or similar benefits available to State of Wyoming employees will inure to the benefit of the Contractor or the Contractor's agents and/or employees as a result of this Contract.

S. **Kickbacks.** The Contractor certifies and warrants that no gratuities, kickbacks or contingency fees were paid in connection with this Contract, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Contract. If the Contractor breaches or violates this warranty, DFS may, at its discretion, terminate this Contract without liability to DFS, or deduct from the contract price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

T. **Notices.** All notices arising out of, or from, the provisions of this Contract shall be in writing and given to the parties at the address provided under this Contract, either by regular mail, or delivery in person.

U. **Notice and Approval of Proposed Sale or Transfer of the Contractor.** The Contractor shall provide DFS with the earliest possible advance notice of any proposed sale or transfer or any proposed merger or consolidation of the assets of the Contractor. Such notice shall be provided in accordance with the notice provision of this Contract. If DFS determines that the

proposed merger, consolidation, sale or transfer of assets is not consistent with the continued satisfactory performance of the Contractor's obligations under this Contract, then DFS may, at its option, terminate or renegotiate the Contract.

V. **Ownership of Documents/Work Product.** All documents, reports, records, field notes, materials, and data of any kind resulting from performance of this Contract are at all times the property of DFS.

W. **Prior Approval.** The Contract shall not be binding upon either party, no services shall be performed under the terms of this Contract, and the Wyoming State Auditor shall not draw warrants for payment on this Contract, until this Contract has been reduced to writing, approved as to form by the Office of the Attorney General, filed with and approved by the Department of Administration and Information, and approved by the Governor of the State of Wyoming or his designee if required by Wyo. Stat. § 9-2-1016(b)(iv)(D).

X. **Severability.** Should any portion of this Contract be judicially determined to be illegal or unenforceable, the remainder of the Contract shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.

Y. **Sovereign Immunity.** The State of Wyoming and DFS do not waive sovereign immunity by entering into this Contract and the Contractor does not waive governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereign or governmental entities pursuant to Wyo. Stat. §§ 1-39-101, *et seq.*, and all other applicable law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Contract shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.

Z. **Taxes.** The Contractor shall pay all taxes and other such amounts required by federal, state and local law, including but not limited to federal and social security taxes, workers' compensation, unemployment insurance and sales taxes.

AA. **Termination of Contract.** This Contract may be terminated, without cause, by DFS upon thirty (30) days written notice. This Contract may be terminated immediately for cause if the Contractor fails to perform in accordance with the terms of this Contract. Upon termination of the Contract, the Contractor must return Community Based Family Support and Preservation Grant unexpended funds within ten (10) working days of the effective date of termination.

BB. **Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Contract shall not be construed so as to create such status. The rights, duties and obligations contained in this Contract shall operate only between the parties to this Contract, and shall inure solely to the benefit of the parties to this Contract. The provisions of this Contract are intended only to assist the parties in determining and performing their obligations under this Contract.

CC. **Time is of the Essence.** Time is of the essence in all provisions of the Contract.

DD. **Titles Not Controlling.** Titles of paragraphs are for reference only, and shall not be used to construe the language in this Contract.

EE. **Waiver.** The waiver of any breach of any term or condition in this Contract shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.

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9. **Signatures.** In witness thereof, the parties to this Contract, either personally or through their duly authorized representatives, have executed this Contract on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Contract.

This Contract is not binding on either party until approved by the Division of Procurement Services, Department of Administration & Information, and the Governor of the State of Wyoming or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).

The effective date of this Contract is the date of the signature last affixed to this page.

COMMUNITY BASED FAMILY SUPPORT AND PRESERVATION GRANT

DEPARTMENT OF FAMILY SERVICES

Steve Corsi, Director

Date

Debra Dugan-Doty, Administrator
Social Services Division

Date

CONTRACTOR, CITY OF CHEYENNE OFFICE OF YOUTH ALTERNATIVES

Richard L. Kaysen, Mayor

Date

ATTEST:

Carol A. Intlekofer, City Clerk

Date

OFFICE OF YOUTH ALTERNATIVES

Dick Berry, Director

ATTORNEY GENERAL'S OFFICE APPROVAL AS TO FORM


Marion Yoder, Senior Assistant Attorney General


Date